

District- Shariatpur

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 561A of the Code of Criminal Procedure.

-And-

In the matter of:

Sultan Ahmed

.... Accused-Petitioner

-Versus-

The State and others

.... Opposite Parties

Mr. Sohel Rana, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 5th February 2024

By this application under Section 561A of the Code of Criminal Procedure sole accused Sultan Ahmed has challenged the legality and propriety of Order No.8 dated

31.08.2023 passed by the learned Senior Session Judge, Shariatpur rejecting Criminal Revision No.86 of 2022 affirming the order dated 22.08.2022 passed by the learned Joint District and Session Judge, 2nd Court, Shariatpur in Session Case No.279 of 2019 arising out of C.R. Case No.85 of 2019 (Naria) under Section 138 of the Negotiable Instrument Act, 1881 (amended as 2006) rejecting an application for recall of PW1 for cross examination.

Mr. Sohel Rana, learned Advocate for the petitioner submits that the appointed Advocate of the accused petitioner could not put all the relevant and necessary questions to PW1 Tahmina Khatun at the time of cross examination. As such the accused petitioner submitted a petition for recall of above PW1 for cross examination. But the learned Joint Session Judge most illegally rejected the same which was erroneous upheld by the learned Session Judge.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the petitioner submits that in order to avoid further delay in the conclusion of trial of above case only one prosecution cases may be recalled for cross examination.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

The petitioner is the sole accused of Session Case No.279 of 2019 and he sought recall of only one PW for cross examination.

On consideration of above facts of the case and for avoidance of further delay in the conclusion of the trial of the case we are of the view that the ends of the justice will be met if the impugned order of the learned Session Judge is set aside and the learned Joint Session Judge is directed to recall PW1 Tahmina Khatun for cross examination without granting any adjournment at the instance of the accused.

Accordingly, we are setting aside the impugned order mentioned above and directing the learned Joint Session Judge, 2nd Court, Shariatpur to recall PW1 Tahmina Khatun for cross examination within 15(fifteen) days from the date of receipt of this order and after above examination proceed with the conclusion of trial of the case expeditiously.

With above direction this application under Section 561A of the Code of Criminal Procedure is disposed of.

MD. MASUDUR RAHMAN
BENCH OFFICER